



Defamation: part 2

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Tort Law 2026

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Today

- ▮ Defamation Part 2:
 - ▮ - Brief Review
 - Defences
 - Case examples

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Img: World's crankiest cat, Margot



Defamation

□ Slander

- The 'spoken word'
- Impermanent/ transitory
- **Special damage** required for a slander to be actionable
- Though some exceptions to requirement for proof of damage
- Used to be more by way of exceptions – see effect of Defamation Act

□ Libel

- In the past, could also be a crime
- The 'written word'
- Permanent rather than transitory
- Though some exceptions [eg radio and TV broadcasts are treated as libel]
- Historically: actionable *per se*



Elements of a defamation action

(Defamation Act + precedent)

- (1) **defamatory statement**
 - ('right-thinking members of [this] society generally')
- (2) statement must be such that it has caused/ is likely to cause **serious harm to reputation** OR, in the case of a trading for profit, has caused or likely to cause **serious financial loss** (see s 1 Defamation Act 2013)
- (3) **reference to that other person**
- (4) **publication**

'a threshold requirement of seriousness'



Defences to Defamation

- ▢ **Truth**
- ▢ **Honest Comment**
- ▢ **Offer to Make Amends**
- ▢ **Public Interest**
- ▢ **Innocent Dissemination**
- ▢ ***Absolute Privilege***
- ▢ ***Qualified Privilege***



Truth

Complete defence

S. 2 Defamation Act 2013,

Burden of proof on the defendant to show the statement is true; *Jeffrey Archer v The Star* (1987)

Jeffrey Archer v The Star [1987]

- ❑ The Star publishes an article that Archer, the Tory party dep. Chairman had sex with Monica Coghlan, a prostitute.
 - ❑ ‘appeared under the headline, ‘Poor Jeffrey, Vice-Girl Monica Talks of Archer – The Man she Knew. ‘
 - ❑ ‘Monica – One Of Her Clients Wanted To Dress As Red Riding Hood, Complete With Suspenders.’
 - ❑ Further publication re £50 for sex and £20 for ‘extra time’.

Archer files a libel suit, stating he never even met Coghlan.



Tory Dep. Chairman Archer & his wife arriving at court, 1987, The Guardian.



Jeffrey Archer v The Star (1987)

- Libel?
 - Defamatory statement?
 - Serious harm to reputation or serious financial loss?
 - AND threshold of seriousness?
 - Reference to other person
 - Publication



Jeffrey Archer v The Star (1987)

- ▮ News of the World (he also sues here) submits recordings of a conversation where Archer, continuing to deny knowing Coghlan, offers her £2,000 to leave the country.
- ▮ Archer resigns.
- ▮ Archer presents evidence he had an alibi during the alleged evenings, testifying her was an 'honourable fool' who paid money to avoid false accusations.
- ▮ Archer wins: £500,00 in damages and £700,000 in costs.

Jeffrey Archer v The Star (1987)

- ▢ 'Jeffrey Archer was awarded record libel damages of £500,000 and more still in costs from the Star newspaper for accusing him of paying a prostitute for sex. Fourteen years later, **Lord Archer was jailed** for four years after being found guilty of ~~lying and cheating~~ in the 1987 libel case.' – 'Jeffrey Archer's 'foolish act of honourable man' – archive, 1987, The Guardian [2017]
- ▢ Two counts of perjury and two counts of perverting the course of justice, jailed in 2001
- ▢ STARRED IN HIS OWN PLAY DEFENDING HIMSELF AGAINST FALSE ACCUSATIONS (2000)

Defence of Honest Comment*

- ▢ Complete defence to a defamation action
- ▢ [Formerly] referred to as 'fair comment'
- ▢ Developed under the common law
- ▢ Now given a statutory footing under s 3 Defamation Act 2013:
 - ▢ 1) statement of opinion (honestly even if unreasonably held);
 - ▢ 2) basis of opinion indicated generally or specifically; and
 - ▢ 3) opinion held on any fact at the time of statement.



Offer to Make Amends

- ❑ Defamation Act 1996, s.3:
 - ❑ In writing;
 - ❑ Expressed to make amends under s. 2 (in relation to the specific defamatory meaning);
 - ❑ Must state whether it is a qualified offer.
- ❑ Must suitably correct the statement and offer a sufficient apology; publish reasonably; pay any agreed amounts. (s. 4)

Publication on a matter of public interest

- S 4 Defamation Act provides a defence for statements which are either in the public interest or which the defendant reasonably believed were in the public interest.
- The existence of this defence can be traced to the House of Lords judgment in *Reynolds v Times Newspapers Ltd* [2001] 2 AC 127
 - 10 factors: seriousness; nature of information and extent of public concern; source; steps to verify; status of the information (authoritative?); urgency; comment sought from claimant?; claimant's side of story?; tone of article; circumstances and timing of the article.

Public Interest or Honest Comment (opinion)?



▮ Rebekah Vardy arriving at court in London during the trial. Photograph: Hannah McKay/Reuters

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Vardy v Rooney [2022] EWHC 2017 (QB)
'Wagatha Christie case'

- Rooney's Insta stories leaked to the press; conducted a 'sting'
- 'It's...Rebekah Vardy.'
- Vardy's agent 'lost' her phone in the North Sea amid Whatsapp requests
- No public interest, won on truth
- no damages paid, but Vardy must pay up to £1.5m of Rooney's legal fees (plus her own)

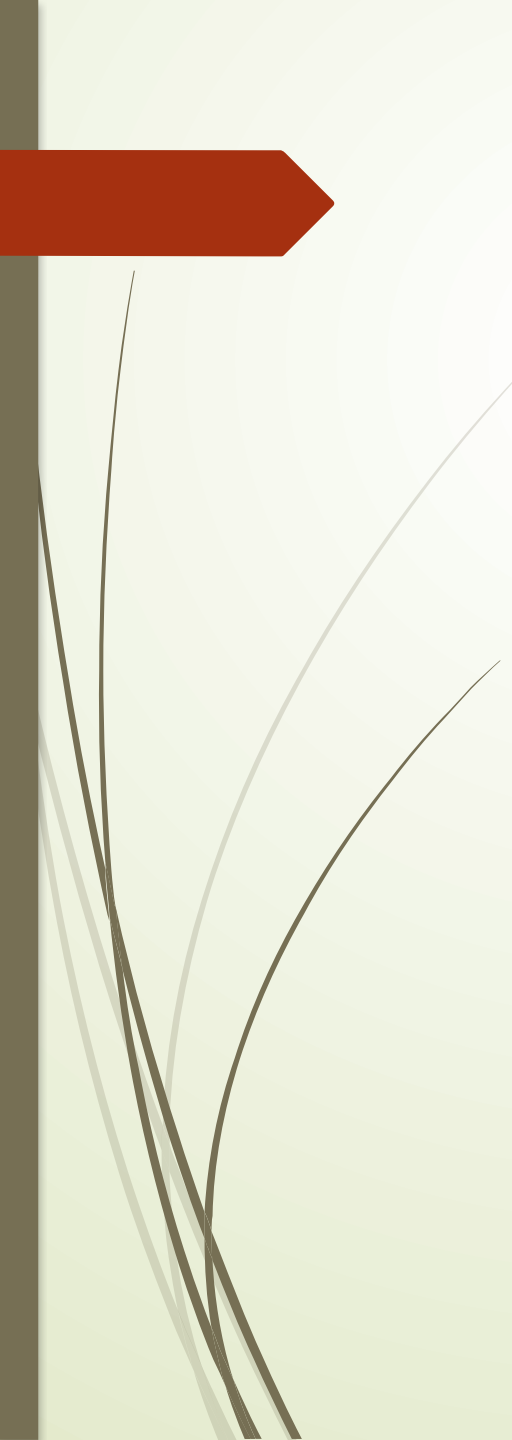


Innocent dissemination of a defamatory statement

- Provides a defence of ‘innocent dissemination’ to those who have played a ‘secondary role’ in publication
 - The defence is available if defendant not the author, editor or publisher of the statement complained of.
 - Only available if defendant “did not know, and had no reason to believe, that what he did caused or contributed to the publication of a defamatory statement.”
- For website operators, the Defamation Act 2013 s 5 provides an additional set of rules in respect of the

NB: The defence of Privilege

- ▢ **Two types of privilege; absolute and qualified**
- ▢ Why does this defence exist?
- ▢ What types of situation does the defence cover?
 - ▢ Absolute privilege
 - ▢ Statements made in Parliamentary debates
 - ▢ Official documents published by parliament
 - ▢ 1689 Bill of Rights, Article 9; “the freedom of speech and debates or proceedings in parliament ought not to be impeached or questioned in any court or place out of parliament”.
 - ▢ Judicial proceedings
 - ▢ Fair and accurate reports of judicial proceedings
 - ▢ Communications between officers of the state



NB: Examples of use of parliamentary privilege

- 2010: “Expenses” scandal [unsuccessful]
 - [Media commentary on the expenses affair](#)
- 2009: MP Tim Yeo uses parliamentary privilege to allege that Suffolk County Council engaged in ‘child kidnap’
 - [YouTube clip of Tim Yeo’s statement](#)
- 2006: MP Peter Robinson used Parliamentary privilege to allege that a property developer was linked with “IRA dirty money”
 - [News link to Robinson accusations](#)

Ngo v The Guardian & New Media Ltd, [2025] EWHC 3004 (KB)

- End of last year on preliminary issues:
 - a. The natural and ordinary meaning of the words complained of in the Article;
 - b. Any innuendo meaning of the words complained of (assuming without deciding that the fact pleaded in the first sentence of paragraph 6.1 of the Particulars of Claim is a fact known to at least one reader of the Article);
 - c. Whether the words complained of were defamatory of the Claimant at common law;
 - d. Whether the words complained of are (or include) an expression of opinion; and
 - e. If the words complained of were (or include) an expression of opinion, whether the basis of that opinion was indicated, in general or specific terms, for the purposes of s.3(3) of the Defamation Act 2013.

□ READ HERE: <https://www.bailii.org/ew/cases/EWHC/KB/2025/3004.html> NB
BAILII.

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Ngo, cont.

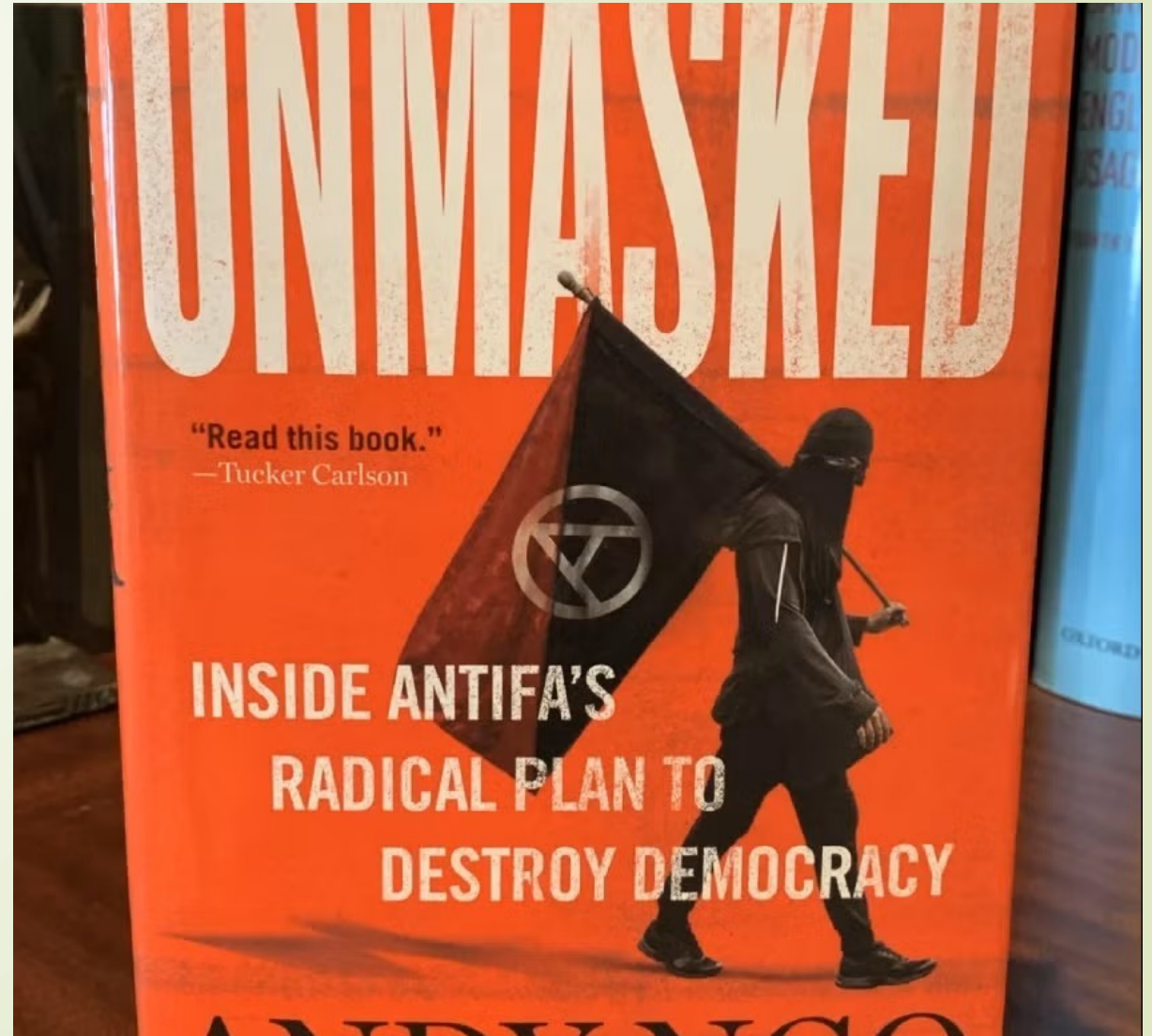
In the wake of the 2021 exit of banjo player (and son and co-founder of GB News) Winston Marshall, Mumford and Sons have reverted to a trio for their fifth album.

Marshall's departure followed an outcry after he praised **'alt-right'** agitator Andy Ngo. Yet listening to Rushmore, one wonders whether the world might be a better place had every member of the band felt obliged to quit three years earlier, when news broke that they had hosted Jordan Peterson at their studio.

□ Music Review in *The Observer*, 2025.

Ngo, cont. Who is he?

- Andy Ngo:
“Unmasked: Inside antifa’s [anti-fascists’] radical plan to destroy democracy.”
- ‘social media influencer’





Ngo, cont.

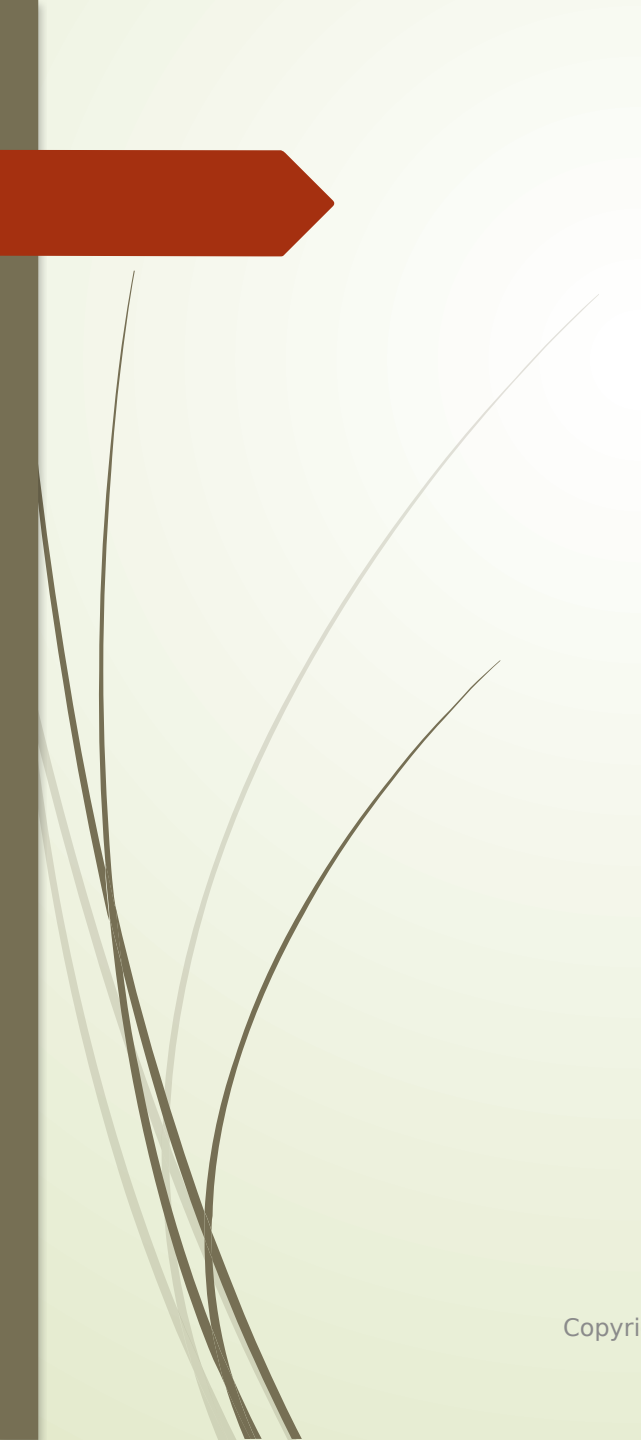
- ▢ Ngo succeeds at pre trial...
 - ▢ ‘To allege that a person is actively engaged in promoting **far right beliefs** tends to harm their reputation in the eyes of right-thinking members of society generally and clearly meets the seriousness threshold at common law.”
 - ▢ ‘I am required to assume that at least one reader would know the fact that "alt-right is a descriptive term for an amalgam of racists and white supremacists". On this basis, I am persuaded that the innuendo meaning of the Article is that the Claimant actively promotes far right, racist and white supremacist beliefs.
 - ▢ Using natural and ordinary meaning: “plainly defamatory at common law...actively promotes far right beliefs’ [not dictionary! *See Stocker.*]
 - ▢ Vassal-Adams KC
- ▢ Honest opinion rejected as a defence.

Think: If the Court has accepted Ngo’s argument on meaning of ‘alt-right’, what are the wider implications?



Chess Scandals!

- ❑ Hans Niemann and Magnus Carlsen
- ❑ Chess.com bans Niemann for cheating
- ❑ Carlsen Tweet
- ❑ \$100m defamation lawsuit



Dear Chess World,

At the 2022 Sinquefeld Cup, I made the unprecedented professional decision to withdraw from the tournament after my round three game against Hans Niemann. A week later during the Champions Chess Tour, I resigned against Hans Niemann after playing only one move.

I know that my actions have frustrated many in the chess community. I'm frustrated. I want to play chess. I want to continue to play chess at the highest level in the best events.

I believe that cheating in chess is a big deal and an existential threat to the game. I also believe that chess organizers and all those who care about the sanctity of the game we love should seriously consider increasing security measures and methods of cheat detection for over the board chess. When Niemann was invited last minute to the 2022 Sinquefeld Cup, I strongly considered withdrawing prior to the event. I ultimately chose to play.

I believe that Niemann has cheated more - and more recently - than he has publicly admitted. His over the board progress has been unusual, and throughout our game in the Sinquefeld Cup I had the impression that he wasn't tense or even fully concentrating on the game in critical positions, while outplaying me as black in a way I think only a handful of players can do. This game contributed to changing my perspective.

We must do something about cheating, and for my part going forward, I don't want to play against people that have cheated repeatedly in the past, because I don't know what they are capable of doing in the future.

There is more that I would like to say. Unfortunately, at this time I am limited in what I can say without explicit permission from Niemann to speak openly. So far I have only been able to speak with my actions, and those actions have stated clearly that I am not willing to play chess with Niemann. I hope that the truth on this matter comes out, whatever it may be.

Sincerely,
Magnus Carlsen - World Chess Champion

How do you cheat in chess?

- ❑ Motion to Dismiss: 'Unsubstantiated Chess Rumors' Twitter account.
- ❑ Settled out of court
- ❑ <https://www.bbc.co.uk/news/world-europe-66647445>



Defamation?

- ▢ Defamation?
 - ▢ Defamatory statement
- ▢ **serious harm to reputation**
OR, in the case of a trading for profit, has caused or likely to cause **serious financial loss**
- ▢ (3) **reference to that other person**
 - ▢ (4) **publication**

‘a threshold requirement of seriousness’?

- ▢ Defences?
- ▢ **Truth**
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Coming up:

- ▢ 14A: Consumer Protection Act
- ▢ 14B: Passing Off